

TRIPS - Trademark

ARTICLE 15

Title: Protectable Subject Matter

Jurisdiction: International

Category: International

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 2, Article 15, 1994

Plain English Summary:

Article 15 establishes what can qualify as a trademark. A trademark can generally consist of signs such as words, names, letters, numerals, figurative elements, and combinations of colors, provided they are capable of distinguishing the goods or services of one undertaking from those of others. For an Ayurvedic startup, this is important for determining whether a product name, brand name, logo, or other distinctive sign can potentially be protected as a trademark.

The Exact Legal Text:

Article 15

Protectable Subject Matter

1. Any sign, or any combination of signs, capable of distinguishing the goods or services of one undertaking from those of other undertakings, shall be capable of constituting a trademark. Such signs, in particular words including personal names, letters, numerals, figurative elements and combinations of colours as well as any combination of such signs, shall be eligible for registration as trademarks. Where signs are not inherently capable of distinguishing the relevant goods or services, Members may make registrability depend on distinctiveness acquired through use. Members may require, as a condition of registration, that signs be visually perceptible.
2. Paragraph 1 shall not be understood to prevent a Member from denying registration of a trademark on other grounds, provided that they do not derogate from the provisions of the Paris Convention (1967).
3. Members may make registrability depend on use. However, actual use of a trademark shall not be a condition for filing an application for registration. An application shall not be refused solely on the ground that intended use has not taken place before the expiry of a period of three years from the date of application.
4. The nature of the goods or services to which a trademark is to be applied shall in no case form an obstacle to registration of the trademark.
5. Members shall publish each trademark either before it is registered or promptly after it is registered and shall afford a reasonable opportunity for petitions to cancel the

registration. In addition, Members may afford an opportunity for the registration of a trademark to be opposed.

Keywords/Triggers:

Ayurvedic trademark, product brand name, trademark eligibility, distinctive mark, Ayurvedic logo, trademark registration, brand protection, trademarkable name

ARTICLE 16

Title: Rights Conferred by a Trademark

Jurisdiction: International

Category: International

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 2, Article 16, 1994

Plain English Summary:

Article 16 establishes the exclusive rights of the owner of a registered trademark. The owner can prevent unauthorized use of identical or similar signs where that use is likely to cause confusion, subject to the conditions in the Agreement. For an Ayurvedic business, this helps explain the protection available after registering a brand name, logo, or other trademark for Ayurvedic goods or services.

The Exact Legal Text:

Article 16

Rights Conferred

1. The owner of a registered trademark shall have the exclusive right to prevent all third parties not having the owner's consent from using in the course of trade identical or similar signs for goods or services which are identical or similar to those in respect of which the trademark is registered where such use would result in a likelihood of confusion. In case of the use of an identical sign for identical goods or services, a likelihood of confusion shall be presumed. The rights described above shall not prejudice any existing prior rights, nor shall they affect the possibility of Members making rights available on the basis of use.
2. Article 6bis of the Paris Convention (1967) shall apply, *mutatis mutandis*, to services. In determining whether a trademark is well-known, Members shall take account of the knowledge of the trademark in the relevant sector of the public, including knowledge in the Member concerned which has been obtained as a result of the promotion of the trademark.

3. Article 6bis of the Paris Convention (1967) shall apply, *mutatis mutandis*, to goods or services which are not similar to those in respect of which a trademark is registered, provided that use of that trademark in relation to those goods or services would indicate a connection between those goods or services and the owner of the registered trademark and provided that the interests of the owner of the registered trademark are likely to be damaged by such use.

Keywords/Triggers:

trademark rights, Ayurvedic brand protection, trademark infringement, confusingly similar mark, registered trademark, well-known trademark, trademark owner, unauthorized use

ARTICLE 17

Title: Exceptions to Trademark Rights

Jurisdiction: International

Category: International

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 2, Article 17, 1994

Plain English Summary:

Article 17 allows Members to create limited exceptions to trademark rights. These exceptions can include fair use of descriptive terms, provided the legitimate interests of the trademark owner and third parties are considered. For an Ayurvedic startup, this is relevant because trademark rights do not necessarily prevent every use of descriptive wording related to a product.

The Exact Legal Text:

Article 17

Exceptions

Members may provide limited exceptions to the rights conferred by a trademark, such as fair use of descriptive terms, provided that such exceptions take account of the legitimate interests of the owner of the trademark and of third parties.

Keywords/Triggers:

trademark exceptions, descriptive terms, fair use trademark, trademark limitations, Ayurvedic product description, trademark owner interests, third-party interests

ARTICLE 18

Title: Term of Trademark Protection

Jurisdiction: International

Category: International

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 2, Article 18, 1994

Plain English Summary:

Article 18 establishes a minimum period for trademark registration and renewal. Initial registration and each renewal must last for at least seven years, and trademark registration must be renewable indefinitely. For an Ayurvedic business, this is relevant when considering the duration and renewal of protection for an Ayurvedic brand or product trademark.

The Exact Legal Text:

Article 18

Term of Protection

Initial registration, and each renewal of registration, of a trademark shall be for a term of no less than seven years. The registration of a trademark shall be renewable indefinitely.

Keywords/Triggers:

trademark duration, trademark renewal, seven-year trademark, Ayurvedic brand protection, trademark validity, trademark registration term, indefinite renewal

ARTICLE 19

Title: Requirement of Use of a Trademark

Jurisdiction: International

Category: International

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 2, Article 19, 1994

Plain English Summary:

Article 19 addresses situations where use of a trademark is required to maintain its registration. A trademark generally cannot be cancelled merely because it has not been used until there has

been an uninterrupted period of at least three years of non-use, subject to valid reasons. For an Ayurvedic startup, this is relevant when maintaining protection for a registered Ayurvedic product or brand name and understanding the consequences of prolonged non-use.

The Exact Legal Text:

Article 19

Requirement of Use

1. If use is required to maintain a registration, the registration may be cancelled only after an uninterrupted period of at least three years of non-use, unless valid reasons based on the existence of obstacles to such use are shown by the trademark owner.
Circumstances arising independently of the will of the trademark owner which constitute an obstacle to the use of the trademark, such as import restrictions on or other government requirements for goods or services protected by the trademark, shall be recognized as valid reasons for non-use.
2. When subject to the control of its owner, use of a trademark by another person shall be recognized as use of the trademark for the purpose of maintaining the registration.

Keywords/Triggers:

trademark use requirement, trademark non-use, three years non-use, trademark cancellation, Ayurvedic brand use, trademark maintenance, valid reasons for non-use

ARTICLE 20

Title: Other Requirements for Trademark Use

Jurisdiction: International

Category: International

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 2, Article 20, 1994

Plain English Summary:

Article 20 prevents the use of special requirements from unnecessarily restricting the use of a trademark in commerce. Requirements such as special presentation, use with another mark, or use in a particular form must generally not unjustifiably complicate trademark use. For an Ayurvedic business, this can be relevant where regulations or commercial requirements impose conditions on how an Ayurvedic brand or trademark must appear or be used on products.

The Exact Legal Text:

Article 20

Other Requirements

The use of a trademark in the course of trade shall not be unjustifiably encumbered by special requirements, such as use with another trademark, use in a special form or use in a manner detrimental to its capability to distinguish the goods or services of one undertaking from those of other undertakings. This will not preclude a requirement prescribing the use of the trademark identifying the undertaking producing the goods or services along with, but without linking it to, the trademark distinguishing the specific goods or services in question, of that undertaking.

Keywords/Triggers:

trademark use requirements, trademark presentation, trademark with another mark, Ayurvedic packaging trademark, brand display requirements, trademark distinctiveness, trademark use restrictions

ARTICLE 21

Title: Licensing and Assignment of Trademarks

Jurisdiction: International

Category: International

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 2, Article 21, 1994

Plain English Summary:

Article 21 deals with licensing and assignment of trademarks. Members may establish conditions for licensing and assignment, but compulsory licensing of trademarks is not permitted under the Agreement. For an Ayurvedic startup, this is useful when a trademark owner wants to license a brand to another manufacturer, distributor, or business, or transfer ownership of the trademark.

The Exact Legal Text:

Article 21

Licensing and Assignment

Members may determine conditions on the licensing and assignment of trademarks, it being understood that the compulsory licensing of trademarks shall not be permitted and that the owner of a registered trademark shall have the right to assign the trademark with or without the transfer of the business to which the trademark belongs.

Keywords/Triggers:

trademark licensing, trademark assignment, Ayurvedic brand licensing, trademark transfer, trademark ownership, compulsory licensing, brand transfer, trademark agreement